

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perna Tomar	Team: Team # 4	CCRB Case #: 200603850	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/22/2006 12:00 AM, Thursday, 03/30/2006 8:00 PM	Location of Incident: § 87(2)(b) and the 70th Precinct	Precinct: 70	18 Mo. SOL 9/30/2007	EO SOL 9/30/2007	
Date/Time CV Reported Tue, 04/04/2006 11:06 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/04/2006 11:06 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Anthony	11182	937987	070 PCT
2. SGT Norman Grandstaff	00588	922445	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jason Kelly	02326	938758	070 PCT
2. POM Joshua Baez	05276	938010	070 PCT
3. POM Mark Boyle	12921	938104	070 PCT
4. POM Brian Brown	14145	923806	070 PCT
5. LT Rafael Mascol	00000	901927	070 PCT
6. POM Ahmed Khan	02341	938765	070 PCT
7. SGT Victor Bruno	90123	901239	070 PCT
8. POM Steven Gordon	11234	934951	070 PCT
9. POM Michael Katinas	14116	936846	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Norman Grandstaff	Abuse: Outside of § 87(2)(b) Sgt. Norman Grandstaff authorized the arrest of § 87(2)(b)	§ 87(2)(b)
B.SGT Norman Grandstaff	Abuse: At the 70th Precinct stationhouse, Sgt. Norman Grandstaff refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
C.POM Jonathan Anthony	Abuse: At the 70th Precinct stationhouse, PO Jonathan Anthony refused to provide shield number to § 87(2)(b)	§ 87(2)(b)

Synopsis

On March 30, 2006, at approximately 8:00PM, PO Ahmed Khan, PO Joshua Baez, PO Jonathan Anthony and PO Jason Kelly conducted a vertical patrol of § 87(2)(b) where they came upon a number of men § 87(2)(b). They called for assistance and a number of officers responded to the location. § 87(2)(b) who was inside his § 87(2)(b) at § 87(2)(b) observed seven males (who are his acquaintances and one of whom is his cousin), in handcuffs, outside the building and he went downstairs to inquire. He then approached the van in which at least one prisoner had already been placed to find out what happened and it was pointed out to him that his cousin § 87(2)(b) was arrested by PO Jonathan Anthony, whom he identified by his shield number. He entered PO Anthony's badge number into his phone when Sgt. Norman Grandstaff allegedly instructed an unidentified black male officer to arrest § 87(2)(b) (allegation A). § 87(2)(b) claimed that an officer then went into his phone and deleted PO Anthony's shield number. § 87(2)(b) was charged with OGA, disorderly conduct, harassment and resisting arrest. At the 70th Precinct stationhouse, § 87(2)(b) alleged that he asked PO Anthony and Sgt. Grandstaff for their shield numbers and received no response from them (allegations B and C).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) § 87(2)(b), was interviewed at the CCRB on April 4, 2006 (enc. 3A-3E).

On March 30, 2006, at approximately 9:00PM, § 87(2)(b) was inside his apartment § 87(2)(b) at § 87(2)(b) eating dinner when he heard a commotion outside the building. He walked to his window to see what was happening when he saw a § 87(2)(b) man named "§ 87(2)(b)" who cleans the building, being escorted to a police van in handcuffs. In addition, a man in his § 87(2)(b)'s also named "§ 87(2)(b)" a man in his § 87(2)(b)'s named "§ 87(2)(b)" a § 87(2)(b) named "§ 87(2)(b)" a § 87(2)(b) named "§ 87(2)(b)" who is § 87(2)(b) cousin, a § 87(2)(b) named "§ 87(2)(b)" and a § 87(2)(b) named "§ 87(2)(b)" were also in handcuffs. Because § 87(2)(b) knew that these people were getting "locked up for no reason," he went downstairs to find out what occurred. When he went downstairs, the § 87(2)(b) named "§ 87(2)(b)" had been placed in a patrol car that was about fifty feet past the building. Behind the patrol car was an unmarked car, which was followed by a marked van. § 87(2)(b) approached the six other prisoners who were seated in the van, which was parked in front of § 87(2)(b) and asked them, "What did you do?" § 87(2)(b) who was in the seat directly behind the front passenger seat, and was closest to where § 87(2)(b) stood, responded, "Nothing." § 87(2)(b) said, "Go figure. Who arrested you?" The prisoners pointed to an officer identified through this investigation as PO Jonathan Anthony (whom § 87(2)(b) described as a uniformed white male, with black hair, 5'7" tall, weighing approximately 170 pounds, approximately 23 years old) who § 87(2)(b) identified by his badge # 11182. PO Anthony was standing near the van so § 87(2)(b) took out his cell phone to enter the officer's badge number into his phone. § 87(2)(b) was standing about two feet away from the van, towards the middle of the van, as he spoke to the prisoners through a closed window. There were a few officers standing about three feet away. As § 87(2)(b) entered the badge number 11182 into his phone and was about to enter the name of the officer, an officer identified through this investigation as Sgt. Norman Grandstaff (whom he described as a plainclothes white male, 6'3" tall, wearing a baseball cap, weighing about 190 pounds, about forty years old) who was standing next to an unmarked car, about 10 to 15 feet from § 87(2)(b) told an unidentified uniformed black male officer (who was 6' tall) to arrest § 87(2)(b). The unidentified black male officer then handcuffed § 87(2)(b) after which § 87(2)(b) saw one of the officers, he did not know whom, go into § 87(2)(b) phone and erase the badge number that § 87(2)(b) saved.

§ 87(2)(b) indicated that his arresting officer was PO Mark Boyle, whose badge number was 12921. At the 70th Precinct, § 87(2)(b) asked Sgt. Grandstaff and PO Anthony for their badge numbers in the presence of all the other prisoners but received no response from either officer. § 87(2)(b) also relayed to the unidentified black male officer and PO Boyle that his handcuffs were too tight. The officers both responded, “one second” but neither loosened the handcuffs. § 87(2)(b) stated that he did not sustain injuries from the handcuffs nor did he seek medical treatment, but felt pain in his wrists.

§ 87(2)(b) who was charged with OGA, resisting arrest, and disorderly conduct, § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] also indicated that while \$110 was taken from him at the 70th Precinct, only \$65 was returned to him § 87(2)(g)

Results of Investigation

Civilian Witnesses

§ 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) were the only identified witnesses in this complaint who were identified through their arrest reports. Letters were mailed to each of them and the letters to § 87(2)(b) and § 87(2)(b) were returned to the CCRB as undeliverable. No telephone numbers or alternate addresses could be located through various search methods (whitepages.com, the Coles Directory, MetroSearch and DMV) for any of these individuals using their names and addresses. § 87(2)(g)

Officer Identification

PO Mark Boyle was identified through § 87(2)(b) arrest report and corroborated his presence at the scene during his CCRB interview. PO Boyle identified PO Jason Kelly, PO Brian Brown, PO Jonathan Anthony, PO Joshua Baez, PO Ahmed Khan and Lt. Rafael Mascol as being present at the location. While all of these officers verified that they were present at the location, only PO Baez recalled some details about § 87(2)(b) arrest. Sgt. Grandstaff was identified as the officer who authorized § 87(2)(b) arrest as he was the only white male sergeant who was in plainclothes working tour 3 in the 70th Precinct. § 87(2)(g)

Officer Statements

PO Mark Boyle

PO Mark Boyle was interviewed at the CCRB on June 29, 2006 (enc. 4A-4G). On March 30, 2006, PO Boyle worked a 1730 by 0205 hours tour doing impact auto with PO Brian Brown. He was dressed in uniform and was assigned to a marked van. He had the following entries in his memo book regarding this incident: “2000: 85 @ § 87(2)(b).” In the arrest report for § 87(2)(b) PO Boyle noted that: § 87(2)(a) 160.50

On March 30, 2006, at approximately 8:00PM, PO Boyle received a call over the radio from PO Anthony, PO Kelly, PO Baez and PO Khan who had stopped six males § 87(2)(b) at § 87(2)(b). Upon his arrival, PO Boyle entered the location and assisted in escorting these individuals to a police van parked outside. Once the prisoners had been placed in the van, § 87(2)(b) approached the van (he did not know where he came from) and yelled and screamed into the van. PO Boyle was near the passenger door of the van when § 87(2)(b) said, “My cousin is inside there. What’s going on? What’s going on?” § 87(2)(b) was “zero feet” from the door of the van on the passenger side and PO Boyle felt that there was a security issue in that § 87(2)(b) may have been able to open the door. PO Boyle said, “Sir, you need to move away from the door.” § 87(2)(b) remained there for fifteen to twenty seconds saying the

same things. PO Boyle repeated to him that he had to move away and § 87(2)(b) complied by moving towards the entrance of the building. On his way, § 87(2)(b) asked a number of officers, not PO Boyle, but other officers, for their names and shield numbers and PO Boyle asserted that whoever he asked provided his shield number. § 87(2)(b) walked towards the entrance of the door and was about forty feet away from the van, but continued to yell and scream but PO Boyle did not recall what he said. When § 87(2)(b) was near the entrance of the door of § 87(2)(b) a supervisor instructed that § 87(2)(b) be arrested. PO Boyle did not recall who went to handcuff § 87(2)(b) but indicated that § 87(2)(b) resisted being handcuffed but he could not recall how he did so. Lt. Mascol was the only supervisor whose name PO Boyle knew who was present at the location.

When asked if § 87(2)(b) asked any officers for their names and shield numbers at the 70th Precinct stationhouse, PO Boyle indicated that as he was processing § 87(2)(b) arrest PO Boyle told § 87(2)(b) that if he wanted any other officers' names and shield numbers he would provide the information to him if he could describe what they looked like. § 87(2)(b) did not describe anyone. PO Boyle stated that § 87(2)(b) did not complain to him that his handcuffs were too tight.

PO Jonathan Anthony

PO Jonathan Anthony was interviewed at the CCRB on July 12, 2006 (enc. 5A-5D). On March 30, 2006, PO Anthony worked a 1730 by 0205 hours tour assigned to a foot post at § 87(2)(b) between § 87(2)(b) and § 87(2)(b). He worked alone and was dressed in uniform. He had the following memo book entries regarding this incident: "2002: 75V at § 87(2)(b) stopped 7 males in basement. Issued summonses. 2055 At stationhouse."

At approximately 8:02PM, on March 30, 2006, PO Anthony did a vertical patrol at § 87(2)(b) with PO Khan. They stopped seven males inside the building § 87(2)(b). PO Anthony called for backup and PO Baez and PO Kelly responded. These individuals were placed under arrest and brought outside to the street to be transported to the 70th Precinct. There were a number of officers outside and Lt. Mascol was present. § 87(2)(b) approached PO Anthony, walking from St. Paul's Place, and asked him for his name and shield number with his camera phone in PO Anthony's face within a few inches. PO Anthony was standing near the passenger door of a van in which prisoners were being placed with PO Kelly and responded, "Anthony, 11182. Now, get outta here." One prisoner was inside the van and some prisoners were outside the van. One of his supervisors, not Lt. Mascol, but a sergeant (he did not recall who) told PO Anthony and another officer (he did not recall who) to escort § 87(2)(b) to the sidewalk in front of § 87(2)(b) since he was about two feet away from the open passenger side door. § 87(2)(b) was "agitated" and insisted that the officers could not arrest these individuals. § 87(2)(b) cursed at the officers and said, "Fuck you. This isn't right." With another officer assisting PO Anthony, PO Anthony escorted § 87(2)(b) by holding his arm and § 87(2)(b) complied. However, § 87(2)(b) did not remain on the sidewalk but approached the officer who was then standing next to PO Anthony (he did not recall who this was) and asked him for his name and shield number and this officer provided the information. There were still prisoners outside the van but PO Anthony did not recall how many or their position in relation to § 87(2)(b). § 87(2)(b) continued to approach the rest of officers and asked them for their names and shield numbers and walked around the street with his camera phone in his hand as officers were escorting perpetrators to police vehicles. At that time, the same supervisor who told PO Anthony to escort § 87(2)(b) told an officer to arrest § 87(2)(b). PO Anthony did not handcuff § 87(2)(b) and did not know who handcuffed him. PO Anthony did not see when § 87(2)(b) was handcuffed and did not recall where he was standing when he was handcuffed.

At the 70th Precinct, PO Anthony did not interact with § 87(2)(b) as he was dealing with his own prisoners. PO Anthony did not hear § 87(2)(b) interact with any officers at the 70th Precinct. He did not hear him complain that his handcuffs were too tight. PO Anthony did not recall § 87(2)(b) ask for his name and shield number at the stationhouse and did not hear him ask any other officer for his name or shield number at the stationhouse. PO Anthony did not reach for § 87(2)(b) cell phone (and delete any information) nor did any officer.

PO Joshua Baez

PO Joshua Baez was interviewed at the CCRB on July 14, 2006 (enc. 7A-7D). On March 30, 2006, PO Baez worked a 1730 by 0205 hours tour assigned to a foot post at § 87(2)(b) and § 87(2)(b). He was dressed in uniform and worked alone. He had the following memo book entry regarding this incident: "2005 75V § 87(2)(b) 2045 7 males stopped in basement of above location. 2047 1 arrest made at location. 2054 2 males arrested."

§ 87(2)(g). PO Baez stated that he was leading his two prisoners to the van outside of § 87(2)(b) and he saw § 87(2)(b) walking around. § 87(2)(b) was yelling, cursing at the officers for being in the building (he did not recall what exactly he was saying) and walking around with his cell phone out in his hand. When PO Baez walked with the prisoners he was escorting to the van in front of the building, § 87(2)(b) was cutting in front of them and interfering with them by blocking their path. At one point, § 87(2)(b) passed in front of PO Baez and the prisoners he escorted at which point PO Baez asked him to move to the side but he did not and PO Baez then walked around him with the prisoners. Apart from that, § 87(2)(b) did not interact with PO Baez at the location or at the stationhouse. He did not see any officers interact with § 87(2)(b) at the stationhouse. PO Baez did not take his phone from him to delete information and did not see any officer to do that. He did not hear § 87(2)(b) ask for any officers' names or shield numbers at the location and § 87(2)(b) did not ask PO Baez at any point. He did not complain that his handcuffs were too tight.

Sgt. Norman Grandstaff

Sgt. Norman Grandstaff was interviewed at the CCRB on August 8, 2006 (enc. 14A-14B). On March 30, 2006, Sgt. Grandstaff worked a 1726 by 0210 hours tour. He was the anti-crime supervisor and did not recall who his operator was. He was dressed in plainclothes and was assigned to a black Chevy Impala. Sgt. Grandstaff did not bring his memo book with him.

On March 30, 2006, at approximately 8:00PM, Sgt. Grandstaff responded to § 87(2)(b) in response to a call for assistance by impact police officers who were doing a vertical patrol. The officers had males stopped for quality of life offenses. Sgt. Grandstaff was shown a photo of § 87(2)(b) and did not recognize him. Sgt. Grandstaff did not recall § 87(2)(b) arrest. It was relayed to Sgt. Grandstaff that § 87(2)(b) was outside the building, walking around, as officers were escorting prisoners to department vehicles for transportation to the stationhouse, but he did not recall the incident. Sgt. Grandstaff stated he did not recall any civilian approaching different officers and asking them for their names and shield numbers. Sgt. Grandstaff did not recall authorizing an arrest of § 87(2)(b). The arrest report for § 87(2)(b) did not refresh Sgt. Grandstaff's recollection of the incident. When a situation was posed to Sgt. Grandstaff with the circumstances surrounding this arrest as described by § 87(2)(b) he stated that he would not authorize an arrest in this situation. Sgt. Grandstaff indicated that if a person was walking around and asking for badge numbers that situation in and of itself would not rise to the level of an arrest, but if that individual was interfering with arrests by approaching prisoners and becoming "tumultuous," possibly inciting prisoners, that would rise to the level of an arrest (OGA). Sgt. Grandstaff stated that he did not recall § 87(2)(b) asking for his name and shield number. Sgt. Grandstaff stated that when a civilian asks for his name and shield number, he provides the information. Sgt. Grandstaff stated that he resumed patrol after being at the location and may have returned to the stationhouse at some point before the end of his tour. He stated that he did not recall § 87(2)(b) asking for his name and shield number at the stationhouse and does not approach the cells where § 87(2)(b) would have been.

PO Brian Brown

PO Brian Brown was interviewed at the CCRB on August 9, 2006 (enc. 14C-14D). On March 30, 2006, PO Brown worked a 1730 by 0205 hours tour. PO Brown was the impact training supervisor and did not recall with whom he worked. PO Brown stated that he assisted in training impact officers and was dressed in uniform. He was assigned to a marked vehicle. PO Brown did not know whether he had any entries in his memo book about this incident since his memo book was destroyed while he was on duty.

On March 30, 2006, at approximately 8PM, PO Brown stated that someone was arrested outside of § 87(2)(b) when he was in his vehicle, but he did not see this individual being arrested or did not know why this person was stopped and arrested, but knew that this individual was arrested on the sidewalk.

PO Brown stated that the only supervisors he recalled being present at the location were Sgt. Grandstaff and Lt. Mascol. PO Brown stated that he resumed his duties after responding to this location and did not return to the stationhouse until the end of his tour.

PO Ahmed Khan

PO Ahmed Khan was interviewed at the CCRB on July 21, 2006 (enc. 8A-8E). On March 30, 2006, PO Khan worked a 1930 by 0205 hours tour. He was assigned to work at post 57 (at § 87(2)(b) between § 87(2)(b) and § 87(2)(b)) and worked there alone. He was dressed in uniform and had no memo book entries regarding this incident.

On March 30, 2006, at approximately 8:00PM, PO Khan was present at § 87(2)(b) but did not recall § 87(2)(b) when shown a photograph of him. PO Khan did not recall that any individual was arrested outside. PO Khan added that he was one of the last officers to come outside of the building once the prisoners inside the building were arrested. PO Khan stated that once he came outside the building, he returned to his post and did not go to the stationhouse. PO Khan did not witness § 87(2)(b) ask any officers for his name or shield number and § 87(2)(b) did not ask him for his name or shield number. PO Khan did not see any officer take § 87(2)(b) cell phone from him and did not see any officer delete a shield number from his phone. PO Khan denied doing this himself.

PO Jason Kelly

PO Jason Kelly was interviewed at the CCRB on July 14, 2006 (enc. 6A-6D). On March 30, 2006, he worked a 1730 by 0205 hours tour and was assigned to a foot post on § 87(2)(b) between § 87(2)(b) and § 87(2)(b). He was dressed in uniform. He had the following memo book entry regarding this incident: "2001: 75V at § 87(2)(b) 2047: 2 under."

At approximately 8:01PM, on March 30, 2006, PO Kelly escorted § 87(2)(b) who was arrested § 87(2)(b), outside and took him to a patrol car or a van for transport and sat in a different vehicle immediately after that. PO Kelly did not observe § 87(2)(b) interact with any officer at the arrest location. He first saw § 87(2)(b) at the stationhouse when he was in the cell. He did not interact with § 87(2)(b) at the stationhouse and did not see § 87(2)(b) interact with any officers at the stationhouse. § 87(2)(b) did not ask for PO Kelly's name or shield number outside of § 87(2)(b) nor at the 70th Precinct stationhouse. PO Kelly did not observe § 87(2)(b) ask any officers for their names or shield numbers at either location. § 87(2)(b) did not complain that his handcuffs were too tight in PO Kelly's presence.

Lt. Rafael Mascol

Lt. Rafael Mascol was interviewed at the CCRB on August 2, 2006 (enc. 9A-9D). On March 30, 2006, Lt. Mascol worked a 1740 by 0205 hours tour as the impact supervisor. He did not recall who his operator was and was assigned to a marked patrol car. He was dressed in uniform. He had no memo book entries regarding this incident.

On March 30, 2006, at approximately 8:00PM, when Lt. Mascol arrived at the location, he entered the building and he was informed that five males § 87(2)(b). Officers escorted the prisoners to the van outside the location through the elevator. At least some of prisoners were placed in the van, which was parked on § 87(2)(b) at § 87(2)(b). Lt. Mascol did not recall any individuals arrested outside the building after the males were arrested inside the building. Lt. Mascol did not recognize a photograph of § 87(2)(b). Lt. Mascol did not recall which units responded and did not recall which other supervisors were at the location. Lt. Mascol analyzed the SPRINT, which indicated that the anti-crime supervisor was the other supervisor who arrived at the location. Lt. Mascol indicated that

Sgt. Bruno was at the location but did not enter the building. It was relayed to Lt. Mascol that he was the authorizing officer as per the arrest report and he stated that he signed it, but he did not recall authorizing an arrest of an individual outside of § 87(2)(b). Lt. Mascol did not return to the stationhouse until the end of his tour.

PO Michael Katinas

PO Michael Katinas was interviewed at the CCRB on August 2, 2006 (enc. 10A-10E). On March 30, 2006, PO Katinas worked a 1500 by 2335 hours tour assigned to patrol. He was working with PO Gordon and was dressed in uniform. He was assigned to a marked patrol car. PO Katinas had no memo book entries regarding this incident.

On March 30, 2006, PO Katinas arrived at § 87(2)(b) at some time after 8:00PM and was told by a supervisor whom he did not recall to resume patrol. He did not recognize § 87(2)(b) and did not recall his arrest outside of the location.

PO Steven Gordon

PO Steven Gordon was interviewed at the CCRB on August 2, 2006 (enc. 11A-11F). On March 30, 2006, PO Gordon worked a 4x 12 hours tour. He was assigned to patrol sector GH. He worked with PO Katinas and was dressed in uniform. He was assigned to a marked patrol car. PO Gordon had no memo book entries regarding this incident.

On March 30, 2006, just after 8PM, when PO Gordon arrived at § 87(2)(b) responding to a call for assistance Sgt. Grandstaff told him to resume patrol. PO Gordon stated that he did not see any civilians outside and did not recall § 87(2)(b). PO Gordon did not recall any individuals being arrested outside the building. PO Gordon stated that he was present for five minutes at the location and left immediately upon exiting the location and returned to the 70th Precinct at the end of his tour.

Sgt. Victor Bruno

Sgt. Victor Bruno was interviewed at the CCRB on August 2, 2006 (enc. 12A-12E). On March 30, 2006, Sgt. Bruno worked a 1715 by 0212 hours tour as impact supervisor. His operator was PO Lee. He was assigned to a marked vehicle and was dressed in uniform. Sgt. Bruno had the following memo book entry regarding the incident: "2035: transport 2 males for post 56 to stationhouse."

On March 30, 2006, at approximately 8:00PM, Sgt. Bruno stated that he responded to § 87(2)(b) for assistance and did not exit his vehicle but only had two males placed in his patrol car. Sgt. Bruno stated that PO Lee did not exit the vehicle either. Sgt. Bruno did not recognize § 87(2)(b) photo and did not see any individual arrested outside. The two males who were placed in his vehicle were already handcuffed when he first saw them.

SPRINT

The SPRINT job related to this incident reflects that impact post officers called for assistance for five males stopped in the basement and in addition to other impact post officers, a patrol car with PO Katinas and PO Gordon as well as the anti-crime supervisor, who was Sgt. Grandstaff, responded.

Arrest Outcome

§ 87(2)(b) was charged with OGA, resisting arrest, harassment and disorderly conduct. § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant CCRB History

§ 87(2)(b) has five other open CCRB complaints, § 87(2)(b)

Officers' CCRB Histories

Sgt. Grandstaff, who has been a member of the NYPD for seven years, has one substantiated allegation in his CCRB history. In CCRB # 200406525, the board recommended charges when it substantiated the allegation that Sgt. Grandstaff used physical force against a civilian and the NYPD issued instructions. PO Anthony, a member of the NYPD for one year, has no substantiated allegations in his CCRB history.

Conclusions and Recommendations

Undisputed Facts

On March 30, 2006, at approximately 8:00PM, PO Baez, PO Khan, PO Anthony and PO Kelly conducted a vertical patrol inside of § 87(2)(b). In the basement, five males were arrested for § 87(2)(b). A number of officers responded to the location including PO Boyle, PO Brown, PO Katinas, PO Gordon, Sgt. Jerome, Lt. Mascol and Sgt. Grandstaff. When the prisoners were outside the location, § 87(2)(b) approached the van in which at least some prisoners were already seated to find out what happened. § 87(2)(b) asked PO Anthony for his name and shield number while he was at the location as he had his cell phone in his hand. § 87(2)(b) was arrested for OGA, disorderly conduct and harassment and escorted to the 70th Precinct.

Disputed Facts

§ 87(2)(g)

Credibility Assessment

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegations Not Pleaded

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A: Outside of § 87(2)(b) [REDACTED] Sgt. Norman Grandstaff authorized the arrest of § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation B: At the 70th Precinct stationhouse, Sgt. Norman Grandstaff refused to provide his name and shield number to § 87(2)(b) [REDACTED]

Allegation C: At the 70th Precinct stationhouse, PO Jonathan Anthony refused to provide his name and shield number to § 87(2)(b) [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: